

CUI

Control Number: ERDC-24-3205

Justification Review Document  
for (Sole Source or Brand Name Justification)  
for Simplified Acquisitions - FAR Part 13

Program/Equipment: Asphalt Chemistry Testing

**Authority:** 41 USC 1901 as implemented in Federal Acquisition Regulation 13.501(a)(1) Sole Source or Brand name acquisitions of commercial supplies or services obtained using simplified procedures as applied in FAR Part 12.

Amount: [REDACTED]

Controlled by: Army  
Controlled by: USACE - CEERD  
CUI Category: General Procurement and Acquisition  
Distribution/Limited Dissemination Control:  
FEDCON  
POC: Jon-Vincent Holden 601-634-7269

**Center/District Reviews**

CUI

(Source Selection information - See FAR 2.101 and 3.104-4)

CUI

Requirement: Asphalt Chemistry Testing  
Control Number: ERDC-24-3205

Location: Vicksburg, MS

I have reviewed this justification and find it adequate to support other than full and open competition.

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Contracting Officer:

Name: David Ammermann  
Procuring Contracting Officer  
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Technical Representative:

Requirements Representative:

(Source Selection Information - See FAR 2.101 and 3.104-4)

AUG 2022

Requirement: Asphalt Chemistry Testing  
Control Number: ERDC-24-3205

Location: Vicksburg, MS

Justification and Approval  
for (Sole Source or Brand Name Justification) for Simplified Acquisitions – FAR Part 13

1. Contracting Activity: The United States Army Corps of Engineers (USACE) Engineer Research and Development Center (ERDC) Contracting Officer located at 3909 Halls Ferry Rd, Vicksburg, MS 39180-6190.

2. Description of Action: SAR-AD chemical analysis is to be performed by a testing laboratory and the results reported to ERDC.

3. Description of Supplies/Services: The U.S. Army Engineer Research and Development Center (ERDC) has a need for specialized chemical fractionation and characterization of asphalt binder sample materials. Estimated total value is [REDACTED]

4. Authority Cited: 41 USC 1901 as implemented in Federal Acquisition Regulation 13.501(a)(1) Sole Source or Brand name acquisitions of commercial supplies or services obtained using simplified procedures as applied in FAR Part 12.

5. Reason for Authority Cited: There is not yet an officially standardized test procedure for SAR-AD analysis. Since this is a complex, non-standard test, accuracy of the results is largely dependent on proficiency, experience, and expertise of the laboratory running the test. To ensure that the performing laboratory has appropriate expertise, the following two qualification requirements must be met:

1. Personnel of the Performer's laboratory must demonstrate a history, for at least 5 years, of technical research publications that specifically include SAR-AD data on asphalt, in reputable, peer-reviewed scholarly journals and presentations in asphalt chemistry focused conferences.

2. The Performer's laboratory should have documented accreditation from the American Association of State Highway and Transportation Officials (AASHTO) for testing of asphalt binder.

6. Efforts to Obtain Competition: A Notice to of Intent to Sole Source will be posted on SAM.gov.

7. Actions to Increase Competition: A Notice to of Intent to Sole Source will be posted on SAM.gov.

8. Market Research: WRI is the only company in the US that we identified that has the specific expertise and experience needed for this task and publicly advertises that they offer this service.

(Source Selection Information - See FAR 2.101 and 3.104-4)

AUG 2022

Requirement: Asphalt Chemistry Testing  
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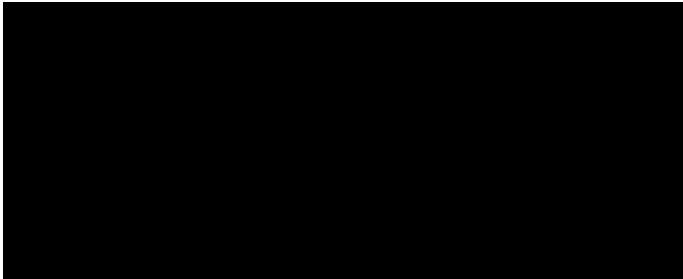
Location: Vicksburg, MS

9. Interested Sources: A notice of intent to sole source will be publish on SAM.gov.

10. Other Facts: None.

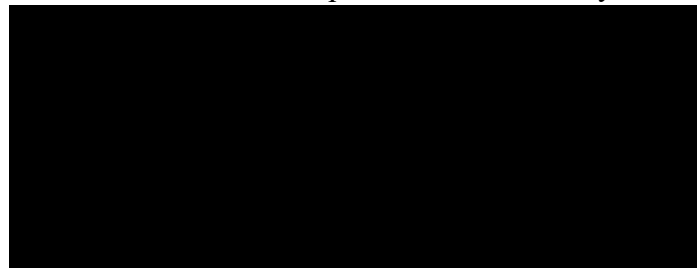
11. Technical Certification:

I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.



12. Requirements Certification:

I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.



Requirement: Asphalt Chemistry Testing  
Control Number: ERDC-24-3205

Location: Vicksburg, MS

### 13. Fair and Reasonable Cost Determination:

An independent Government estimate will be used determine cost reasonableness. Per FAR 15.401-1 (a) Certified cost or pricing data shall not be obtained for acquisitions at or below the simplified acquisition threshold. I hereby determine that the anticipated cost to the Government for this contract action will be fair and reasonable.

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### 14. Contracting Officer Certification:

I certify that this justification is accurate and complete to the best of my knowledge and belief.  
Contracting Officer:

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### Approval

Based on the foregoing justification, I hereby approve the procurement of Asphalt Chemistry Testing, [REDACTED] on an other than full and open competition basis pursuant to the authority 41 USC 1901 as implemented in Federal Acquisition Regulation 13.501(a)(1) Sole Source or Brand name acquisitions of commercial supplies or services obtained using simplified procedures as applied in FAR Part 12.

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